

24STCV18437 24STCV18437

County: los-angeles

Division: Civil Law and Motion

Department: 224

Hearing date: 2026-07-08

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C224%2C07%2F08%2F2026

Source SHA-256: 1765cf159b572a95448d863aa12a372da3d28e1dfbd04f0bb4f33320d440902e

Case Number: 24STCV18437 Hearing Date: July 8, 2026 Dept: 224

Allstate Insurance v. Rosa Griselda Hernandez Rodriguez et al.

Background

Plaintiff Allstate Insurance Company, as subrogee of Robert Rand, alleges that on or about August 7, 2022, Defendants negligently operated, maintained, controlled, entrusted, and/or drove motor vehicles so as to cause a collision involving insured property at 559 and 561 S. Soto Street, Los Angeles, CA 90033. The complaint pleads damages of \$69,919.06, plus interest and costs. The revised damages amount claimed on the CIV-100 and the JUD-100, however, is \$65,333.78.

Plaintiff now seeks default judgment against Edgar Munoz Flores only. Plaintiff settled with Defendants Rosa Griselda Hernandez Rodriguez and Lupita Laura Francisco for \$5,000, which was deducted from the requested judgment amount, and that those defendants were dismissed from the complaint. After subtracting the settlement credit from, and adding the costs to, the revised damages amount, the JUD-100 now seeks a total of \$61,589.03.

PROOF OF SERVICE/DEFAULT: Default of Edgar Munoz Flores previously entered on 6/25/2025.

PRINCIPAL REQUESTED: \$ 65,333.78.

SETTLEMENT CREDIT: -\$5,000.00

COSTS: \$1,255.25.

TOTAL: \$ 61,589.03.

ANALYSIS:

There is no pending motion to vacate default. Thus default has been properly entered.

The named defendants against whom default judgment is not sought have been dismissed, and Does 1-15 have been dismissed.

The JC Form CIV-100 was used to request court judgment, item 2 is completed, and the declaration of nonmilitary status requirement is filled out.

A memorandum of costs is verified on the CIV-100 form.

There were two declarations in support of default judgment submitted.

The requested damages do not exceed the complaint or Statement of Damages. The complaint and Statement of Damages both use \$69,919.06, while the requested revised damages are \$65,333.78, less than that, before the \$5,000 settlement credit and costs are applied.

Edgar Munoz Flores was served by substituted service on February 12, 2025 at 2709 E. 7th Street, Los Angeles, CA 90023, through "John Doe," a co-occupant who refused to give his name.

Deficiencies:

At the hearing on July 8, 2026, the Court flagged for Plaintiff that Plaintiff had filed an amendment to the Complaint after default was entered. The amendment was filed October 30, 2025, correcting "Francisco Lupita" to "Lupita Laura Francisco." While this did not alter the allegations, in Plaintiff's supplemental filing, Plaintiff will need to address whether Plaintiff served the Amended Complaint against Edgar Munoz Flores. If not, Plaintiff will need to do so and take a default on the failure to respond to the Amended Complaint if there is no response.

The JUD-100 appears to place the \$1,255.25 costs amount on the attorney-fees line, while the costs line is checked but left blank. Plaintiff is not actually seeking attorney's fees. The JUD-100 should be corrected so \$1,255.25 appears as costs, not attorney fees.

The packet includes a cross-complaint by Rosa/Lupita against Edgar and others, but it appears that cross-complaint has now been dismissed as of April 9, 2026.

At the hearing the Court also advised Plaintiff, that in insurance subrogation cases, the Court requires declaration from the insured or a percipient witness establishing liability and proper identification of the defendant. The packet only has the insurer's claims representative and attorney declarations, and the liability facts are stated as based "on information and belief." This is not sufficient admissible evidence to obtain a judgment.

Snyder states that Allstate paid \$69,919.06, then says a recent invoice review supports a revised damage amount of \$65,333.78. The attached payment ledger itself, however, shows the Total Amount Paid as \$68,919.06, not \$69,919.06.

Conclusion

The OSC is CONTINUED for Plaintiff to remedy the deficiencies. Plaintiff shall submit its updated default judgment package 10 days before the hearing.

Declarations in response to the Orders to Show Cause are due five court days before the hearings.